

		Clerk to give notice.
3	Quinteros vs. Green Power Pros 30-2024-01370553-CU-BC-CJC	Plaintiff's Motion to Correct Clerical Error in Judgment Plaintiff Marta Quintero's Motion to Correct Clerical Judgment is GRANTED. Plaintiff to submit an amended judgment adding Defendant Jamie Garcia Mora within 5 days. Plaintiff to give notice.
4	Asmar vs. Alphamotive Motors, LLC 30-2024-01395887-CU-BC-CJC	Defendant's Motion to Quash Service of Summons for Lack of Personal Jurisdiction and Request for Attorney Fees Continued to 7/18/2025 at plaintiff's request
5	Lacy vs. OneOc 30-2024-01417351-CU-OE-CJC	Defendant OneOC's Motion to Compel Binding Arbitration and for Stay of Action Defendants Revhuboc Social Innovation Fund I LLC, The Orange County Center for Innovation & Social Enterprises SPC, Stephan Erkelens and Tim Shaw's Joinder to Motion to Compel Arbitration and Stay of Action and Petition to Compel Arbitration The motion to compel arbitration by Defendant OneOC, and joined by Defendants RevHubOC Social Innovation Fund I LLC; The Orange County Center For Innovation & Social Enterprises SPC; Stephan Erkelens; and Tim Shaw (collectively, "RevHub Defendants"), is GRANTED. The petition to compel arbitration by the RevHub Defendants is GRANTED. The court declines to consider Plaintiff's untimely opposition, which was due on 4/7/2025 but not filed until 4/10/2025. (See Code Civ. Proc., ¶ 1005, subd. (b); <i>Jack v. Ring LLC</i> (2023) 91 Cal.App.5th 1186, 1210 [court properly refused to consider late-filed papers].) Defendants seek to compel arbitration pursuant to pursuant to the Federal Arbitration Act (9 U.S.C. § 1, et seq.) and Code of Civil Procedure Sections 1281 et seq. The Federal Arbitration Act ("FAA") "applies where there is 'a contract evidencing a transaction involving commerce.'" (<i>Allied-Bruce Terminix Companies, Inc. v. Dobson</i> (1995) 513 U.S. 265, 277, quoting 9 USC § 2].) A court's role in considering a petition to compel arbitration under the FAA is limited to "determining (1) whether a valid agreement to arbitrate exists and, if it does, (2) whether the agreement

encompasses the dispute at issue. If the response is affirmative on both counts, then the Act requires the court to enforce the arbitration agreement in accordance with its terms.” (*Chiron Corp. v. Ortho Diagnostic Sys. Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130.) “In determining the rights of parties to enforce an arbitration agreement within the FAA’s scope, courts apply state contract law while giving due regard to the federal policy favoring arbitration.” (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236.)

Under Code of Civil Procedure section 1281.2, a party to an arbitration agreement may move to compel arbitration if another party to the agreement refuses to arbitrate. The moving party bears the initial burden of proving the existence of an arbitration agreement by a preponderance of the evidence. (*Villacreses v. Molinari* (2005) 132 Cal.App.4th 1223, 1230.) If the moving party meets that burden, the burden shifts to the opposing party to prove by a preponderance of evidence a defense to enforcement of the agreement. (*Ibid.*)

Existence of Agreement

To meet its initial burden, the moving party need only submit a copy of the arbitration agreement or recite its terms in the petition or motion. (Cal. Rules of Court, rule 371; *Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 218-219.)

To meet their burden, Defendants submitted a copy of OneOC’s California Dispute Resolution Agreement (“Agreement”). (Brooks-Hawkins Decl., ¶ 5, Ex. 1.) Plaintiff signed the Agreement containing this arbitration provision on May 1, 2023, which was her first day of work. (Brooks-Hawkins Decl. ¶¶ 4-5, Ex. 1.)

Plaintiff alleges causes of action for Discrimination in Violation of FEHA based on race and gender, Harassment in Violation of FEHA based on race and/or gender, hostile work environment, Retaliation, Whistleblower retaliation, Failure to Prevent Discrimination, Harassment and Retaliation, Failure to Investigate, Negligence, Negligent Hiring, Defamation, Trade Libel, Violation of the Confidentiality of Medical Information Act (CMIA), Intentional Misrepresentation, Wrongful Termination, Intentional Infliction of Emotional Distress; and Violation of Business and Professions Code Section 17021. (See, generally, FAC.)

All of Plaintiff’s claims relate to and arise from Plaintiff’s employment with Defendants and are subject to binding and contractual arbitration.

Standing of RevHub Defendants

An obligation to arbitrate does not attach only to those who have actually signed the agreement to arbitrate. (See, e.g., *Dryer v. Los Angeles Rams* (1985) 40 Cal.3d 406, 414 [nonsignatory agents of signatory are entitled to enforce an arbitration agreement]; *Mance v. Mercedes-Benz USA* (N.D. Cal. 2012) 901 F.Supp.2d 1147, 1155.) In certain circumstances, a non-signatory can compel a signatory to arbitrate. (*Ibid.*) For instance, a non-signatory can enforce an arbitration agreement as a third-party beneficiary. (*Ibid.*; see *Marenco v. DirecTV LLC* (2015) 233 Cal.App.4th 1409, 1417 [a non-signatory can enforce an arbitration agreement as a third party beneficiary]; *Valley Casework, Inc. v. Comfort Constr., Inc.* (1999) 76 Cal.App.4th 1013, 1021 [explaining that “in many cases, nonparties to arbitration agreements are allowed to enforce those agreements where there is sufficient identity of parties”]; *Ronay Family Limited Partnership v. Tweed* (2013) 216 Cal.App.4th 830, 838.) “Whether the third party is an intended beneficiary or merely an incidental beneficiary involves construction of the intention of the parties, gathered from reading the contract as a whole in light of the circumstances under which it was entered.” (*Cione v. Foresters Equity Services, Inc.* (1997) 58 Cal.App.4th 625, 636.) “It is not necessary that the beneficiary be named or identified as an individual.” (*Ronay Family*, 216 Cal.App.4th at p. 839.) Germane is whether the third party “shows that he is a member of a class of persons for whose benefit it was made.” (*Ibid.*, citing *Garratt v. Baker* (1936) 5 Cal.2d 745, 748; accord, *Cargill, Inc. v. Souza* (2011) 201 Cal.App.4th 962, 967.)

Here, the RevHub Defendants have established they are intended third-party beneficiaries of the Agreement.

The RevHub Defendants’ evidence establishes the Agreement refers to third-party beneficiaries and the RevHub Defendants fall within the class of persons or entities for whom the Agreement was intended. The language regarding OneOC’s “affiliated or client entities” was specifically meant to protect organizations such as RevHub. The language regarding “owners, directors, officers, manager, employees, agents” was likewise meant to protect those individuals who could be named as defendants because of their affiliation with RevHub, such as Erkelens and Shaw. (Erkelens Decl., ¶ 15; Muffie Decl., ¶ 10; Brooks-Hawkins Decl., ¶ 5.)

The evidence also establishes Plaintiff was hired at the specific request of RevHub. She would not have become an OneOC employee if not for the hiring request and authorization provided by RevHub. She had no real duties at OneOC other than to serve fiscal projects. In this context, RevHub was the “client entity” and

		"affiliated entity" of OneOC in the hiring of Plaintiff and in her agreement to resolve disputes by binding arbitration. (Muffie Decl., ¶ 11.) Further, Plaintiff alleges there was a unity of interest and ownership between Defendants OneOC, OCCISE, RevHub Fund, Erkelens and Shaw. (FAC, ¶¶ 5-7.) Accordingly, all Defendants have met their initial burden. Plaintiff has failed to meet her burden of establishing a defense to enforcement of the Agreement. "The failure to serve and file a written opposition may be construed by the court as an admission that the motion is meritorious, and the court may grant the motion without a hearing on the merits." (Rules of Court, Rule 3.1342(b); see also <i>DuPont Merck Pharmaceutical Co. v. Sup. Ct.</i> (2000) 78 Cal.App.4th 562, 566 ["By failing to argue the contrary, plaintiffs concede this issue"].) This action is STAYED pending completion of arbitration. OSC re Dismissal scheduled for 4/24/2025 is VACATED. Arbitration Status Hearing set for 4/23/2026 at 1:30 PM. The parties are ORDERED to file a status report 5 days prior. Clerk to give notice.
6	Shaw vs. Ford Motor Company 30-2023-01340982-CU-BC-CJC	Defendants Motion to Compel Deposition and Request Monetary Sanctions Off calendar at request of moving party.
7	Edmonson vs. Monarch 30-2023-01346667-CU-PN-CJC	Defendant's Motion to Compel Further Responses to Requests for Production of Documents, Set Two Defendant Michael J. Monarch's Motion to Compel Plaintiff Michelle Edmonson to Further Respond to Defendant Michael J. Monarch's Requests for Production of Documents, Set Two is GRANTED. (Code Civ. Proc., § 2031.310, subd. (a).) Defendant seeks to compel further responses and document production to Request Nos. 26, 27 and 30. Plaintiff has not opposed the motion. Within 30 days, Plaintiff is to provide the following: Request Nos. 26 and 27: Plaintiff is to provide a verified, supplemental response and produce any responsive documents. If any documents have been withheld on the basis of the attorney-client privilege, Plaintiff must produce a privilege log.